

NON DISCLOSURE UNDERTAKING

LCAP Technologies

Human Resources

To,

I _____ s/o d/o _____

r/o COMPLETE ADDRESS _____

here in after "Recipient", in consideration of my employment with the Company, and Company agreeing to make available to me certain financial and other Confidential Information relating to the Project(s), I will be required to work on during the course of my employment with the Company, hereby undertake to the Company on the terms set out below:

1. Interpretation

In this letter, the following definitions and rules of interpretation shall apply:

Company	Company shall mean LCAP Technologies a company incorporated under the Companies Act, 1956, which shall mean and include its Group companies, affiliates, agents, successors – in – interest and permitted assigns.
Confidential Information:	Means (a) the fact that the Company is considering to release information on the Project and the existence and contents of this letter; (b) the existence and contents of the information already disclosed and (c) all information in whatever form (including, without limitation, in written, oral, visual or electronic form, or on tape or disk) relating to the Project, the Company, or any company in the Company's Group, that is directly or indirectly disclosed to the Recipient or any of its representatives by any agent or employee of the Company's Group but excluding information which: (i) is, or subsequently becomes, public knowledge other than as a direct or indirect result of the information being disclosed in breach of this letter; or (ii) Recipient received from a source which is to the best of its knowledge not connected with the Company or its Group and which is not to the best of its knowledge under any obligation of confidence in respect of the information; or (iii) was known to the Recipient before the date of this letter and in respect of which the Recipient was not under any obligation of confidentiality; or (iv) Information under this letter each party agrees in writing is not confidential. (v) is separately developed by the Recipient without reference to any provision of this Agreement.
Copies:	copies of Confidential Information including any document, electronic file, note, extract, analysis, study, plan, compilation or any other way of representing or recording and recalling information which contains, reflects or is derived or generated from Confidential Information.

Acceptance: _____



Group:	in relation to a company, that company and any Subsidiary of it unless the context otherwise requires, the application of the definition of Group to any company at any time shall apply to the company as it is at that time.
Permitted Purpose:	Working on different Project(s) during the course of employment.
Subsidiary:	in relation to a company wherever incorporated (a holding company), means a "subsidiary" as defined in section 4(1) of the Companies Act 1956 and any other company which is a subsidiary (as so defined) of a company which is itself a subsidiary of such holding company.

2.Recipient's obligations

2.1 The Recipient shall:

- (a) keep the Confidential Information secret;
- (b) use the Confidential Information only for the Permitted Purpose;
- (c) not directly or indirectly disclose the Confidential Information (or allow it to be disclosed), in whole or in part, to any person or make Copies unless permitted by this letter;
- (d) use its best endeavours to ensure that no person gets access to the Confidential Information from the Recipient, its officers, employees or agents unless authorised; and
- (e) inform the Company immediately upon becoming aware, or suspecting, that an unauthorised person has become aware of Confidential Information.

2.2 The Recipient shall not disclose the Confidential Information to any person without prior written consent of the Company. The Recipient shall treat all information, documents and papers and other matters coming to him/ her from the company or due to the Recipient being employee/ associate of the company, including the contents of this letter, his/her remuneration and service conditions strictly confidential and not divulge the same, without express permission of the designated officers of the Company, to any person, including employees/ associates of this company &/or employees/associates of any of the Group companies as defined herein above. The word associate shall mean any person other than an employee connected or working for the company &/or companies under the same management in any capacity such as consultant, advisor, advocate and contractor etc.

2.3 Save where required by applicable law or regulation, if the Company request in writing, the Recipient shall immediately return to the Company all the Confidential Information received by the Recipient and destroy or permanently erase all Copies made by the Recipient in whatsoever form.

2.4 The Recipient acknowledge Company's proprietary rights on the Confidential Information, and agrees that all the work done/ generated / created / produced / finished /developed by Recipient Company shall be work done for hire, and any/ all rights of whatsoever nature in such work shall solely and exclusively vest with the Company; and the Company shall have absolute right thereupon to the exclusion of all others.

3.Time

The obligations of Recipient shall be continuous and the term of the undertaking in this letter shall be perpetual.

Acceptance: _____



4. Indemnity

The Recipient shall (in addition to, and without affecting, any other rights or remedies the Company may have whether under statute, common law or otherwise) indemnify, and keep indemnified, the Company, and their respective officers, employees, advisers or agents (each an Indemnified Person) from and against all actions, claims, demands, liabilities, damages, losses, costs, charges and expenses (including, without limitation, consequential losses, loss of profit and all interest, penalties and legal and other professional costs and expenses) that an Indemnified Person may suffer or incur in connection with, or arising from, any breach or non-performance by the Recipient, or any person to whom the Recipient has disclosed or given access to any part of the Confidential Information or any Copies, of any of the provisions of this letter (unless such person to whom disclosure is made is under a direct obligation of confidentiality to the Company other than under the terms of this letter). This Indemnity shall not apply to any disclosure that the Recipient believes that it is under any legal or regulatory obligation to make.

5. Whole agreement and conduct of negotiations

5.1 This letter is the whole agreement between the parties and supersedes any arrangements, understanding or previous agreement between them relating to the subject matter covered by this letter.

5.2 The Recipient acknowledges that the Confidential Information may not be accurate or complete and the Recipient understands that the Confidential Information may not be entirely accurate or complete.

6. Assignment

The Recipient can not assign any of its rights under this letter or any document referred to in it.

7. Third party rights and intellectual property

7.1 Except as provided in this paragraph 7, this letter is made for the benefit of the parties to it and their successors and permitted assigns and is not intended to benefit, or be enforceable by, anyone else.

7.2 This letter is made for the benefit of the Company from time to time.

7.3 None of the Confidential Information is the property of the Recipient. The disclosure to the Recipient of any Confidential Information shall not give the Recipient any licence or other rights whatsoever in respect of any part of such Confidential Information beyond the rights contained in this letter.

8. Severance

8.1 If any court or administrative body of competent jurisdiction finds any provision of this letter to be invalid, unenforceable or illegal, the other provisions of this letter shall remain in force.

8.2 If any invalid, unenforceable or illegal provision would be valid, enforceable or legal if some part of it were deleted, the provision shall apply with whatever modification is necessary to make it valid, enforceable and legal.

9. Variation and waiver

9.1 A variation of this letter shall be in writing and signed by or on behalf of all parties.

Acceptance: _____



9.2 A waiver of any right under this letter is only effective if it is in writing and it applies only to the person to whom the waiver is addressed and the circumstances for which it is given.

9.3 A person that waives a right in relation to one person, or who takes or fails to take any action against that person, does not affect its rights against any other person.

9.4 No failure to exercise or delay in exercising any right or remedy provided under this letter or by law constitutes a waiver of such right or remedy or will prevent any future exercise in whole or in part thereof.

9.5 No single or partial exercise of any right or remedy under this letter shall preclude or restrict the further exercise of any such right or remedy.

9.6 Rights arising under this letter are cumulative and do not exclude rights provided by law.

10. Governing law and jurisdiction

10.1 This letter and any disputes or claims arising out of, or in connection with, its subject matter are governed by and construed in accordance with the laws of India. The parties each irrevocably agree that the courts of New Delhi have exclusive jurisdiction to settle any dispute or claim that arises out of or in connection with this letter.

Please confirm your agreement by signing and returning to us a copy of this letter.

Yours faithfully,

I have read and agree to the terms of the above letter.

Signed by:

D/o / S/o:

Address:

.....

Employee Code:

Designation:

Acceptance: _____

